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ANNEX 6

UNIFIED INTERPRETATION TO REGULATION 2.23 OF MARPOL ANNEX VI

(update to the unified interpretation provided in paragraphs 1.2.3 and 1.2.4 of the annex to MEPC.1/Circ.795/Rev.4)

1 Definition of "new ship"

Regulation 2
Definitions

Regulation 2.23 reads as follows:

"New ship means a ship:

.1 for which the building contract is placed on or after 1 January 2013; or

.2 in the absence of a building contract, the keel of which is laid or which is at a similar stage of construction on or after 1 July 2013; or

.3 the delivery of which is on or after 1 July 2015."

Interpretation:

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SOURCE: MEPC.332(76).pdf
.2 in the absence of a building contract, the keel of which is laid or which is at a similar stage of construction on or after 1 July 2013; or

.3 the delivery of which is on or after 1 July 2015."

Interpretation:

1.1 For the application of the definition "new ship" as specified in regulation 2.23 to each phase specified in table 1 of regulation 21, it should be interpreted as follows:

.1 the date specified in regulation 2.23.1 should be replaced with the start date of each phase;

.2 the date specified in regulation 2.23.2 should be replaced with the date six

months after the start date of each phase; and

.3 the date specified in regulation 2.23.3 should, for Phase 1, 2 and 3, be replaced with the date 48 months after the start date of each phase.

1.2 With the above interpretations, the required EEDI of each phase is applied to the following new ship which falls into one of the categories defined in regulations 2.25 to 2.31 and to which chapter 4 is applicable:

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.3 the required EEDI of Phase 2 is applied to the following new ship:

.1 for ship types where Phase 2 ends on 31 March 2022:

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SOURCE: MEPC.332(76).pdf
and to which chapter 4 is applicable:

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.3 the required EEDI of Phase 2 is applied to the following new ship:

.1 for ship types where Phase 2 ends on 31 March 2022:

.1 the building contract of which is placed in Phase 2, and the delivery is before 1 April 2026; or

.2 the building contract of which is placed before Phase 2, and the delivery is on or after 1 January 2024 and before 1 April 2026; or

in the absence of a building contract:

.3 the keel of which is laid or which is at a similar stage of construction on or after 1 July 2020 and before 1 October 2022, and the delivery is before 1 April 2026; or

.4 the keel of which is laid or which is at a similar stage of construction before 1 July 2020, and the delivery is on or

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SOURCE: MEPC.332(76).pdf

construction on or after 1 July 2020 and before 1 October 2022, and the delivery is before 1 April 2026; or

.4 the keel of which is laid or which is at a similar stage of construction before 1 July 2020, and the delivery is on or after 1 January 2024 and before 1 April 2026.

.2 for ship types where Phase 2 ends on 31 December 2024:

.1 the building contract of which is placed in Phase 2, and the delivery is before 1 January 2029; or

.2 the building contract of which is placed before Phase 2, and the delivery is on or after 1 January 2024 and before 1 January 2029; or

in the absence of a building contract:

.3 the keel of which is laid or which is at a similar stage of construction on or after 1 July 2020 and before 1 July 2025, and the delivery is before 1 January 2029; or

.4 the keel of which is laid or which is at a similar stage of construction before 1 July 2020, and the delivery is on or after 1 January 2024 and before 1 January 2029.

.4 the required EEDI of Phase 3 is applied to the following new ship:

.1 for ship types where Phase 3 commences with 1 April 2022 and onwards:

.1 the building contract of which is placed in Phase 3; or

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SOURCE: MEPC.332(76).pdf
.4 the required EEDI of Phase 3 is applied to the following new ship:

.1 for ship types where Phase 3 commences with 1 April 2022 and onwards:

.1 the building contract of which is placed in Phase 3; or

.2 the building contract of which is placed before Phase 3, and the delivery is on or after 1 April 2026; or

in the absence of a building contract:

.3 the keel of which is laid or which is at a similar stage of construction on or after 1 October 2022; or

.4 the keel of which is laid or which is at a similar stage of construction before 1 October 2022 and the delivery of which is on or after 1 April 2026.

.2 for ship types where Phase 3 commences with 1 January 2025 and onwards:

.1 the building contract of which is placed in Phase 3; or

.2 the building contract of which is placed before Phase 3,

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SOURCE: MEPC.332(76).pdf

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.1 the building contract of which is placed in Phase 3; or

.2 the building contract of which is placed before Phase 3, and the delivery is on or after 1 January 2029; or

in the absence of a building contract: